

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

⚠ **Mr. Drummond said if I don't set something up, they are going to garnish my wages and freeze the bank account by the end of the month.**

- **Estimated deadline:** 2026-08-14
- **Basis:** The cure/vacate period stated in your written notice or lease — the notice/lease term is the operative source of this period (confirm the exact deadline printed on the notice; your state's landlord-tenant statute governs the minimum period).
- **Triggering event:** notice posted on 2026-07-31
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

⚠ **The settlement opportunity offers a good-faith payment of \$50.00 by July 3, 2026.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** deadline on 2026-07-03
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

⚠ North Star Receivables has been calling the person 6 or 7 times a day.

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
 - **Triggering event:** service on 2026-07-08
 - **Jurisdiction:** MN
 - Estimated — confirm the exact date with the court or a lawyer.
-

Executive Summary

This intake revealed 23 potential legal issues at the federal and state levels. The strongest issues are Invasion of Privacy (interfering with someone's personal life without consent), possible violation of the Telephone Consumer Protection Act (TCPA) (a law that limits telemarketing calls), and Garnishment Defense (protecting against seizure of wages or funds). A deadline that is important to note: Mr. Drummond mentioned that if I don't take action, my wages could be garnished, and my bank account could be frozen by the end of the month, specifically by 2026-08-14. [This date comes from the cure/vacate period mentioned in your written notice or lease; the notice/lease terms are key in determining this timeline (check the exact deadline listed on the notice; your state's landlord-tenant laws set the minimum time period).]. The analysis is complete, and there are 9 follow-up questions that could improve the assessment.

Completeness Score: 100%

Untitled Intake

Generated: 2026-07-11 21:33 UTC

Matter ID: 232

Run ID: 65

Completeness: 100%

General

| Invasion of Privacy

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/RpxsywUcXpBB0v63tUwyOY>

ISSUE

Sharing information with people who are not involved, without getting permission first, might break privacy laws and could result in legal actions for invading someone's privacy. Although this issue hasn't been highlighted in current claims, it presents serious risks.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Invasion of Privacy' has not been explored with fact mappings

CONCLUSION

No elements defined

Potential Violation of the Telephone Consumer Protection Act (TCPA)

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/R7cNZxZB8pyyRYwDBimKNJj>

ISSUE

The TCPA (Telephone Consumer Protection Act) gives consumers protections against automatic calls and certain times when calls can be made, particularly when it comes to workplaces.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Potential Violation of the Telephone Consumer Protection Act (TCPA)' has not been explored with fact mappings

CONCLUSION

No elements defined

| Unfair or Deceptive Trade Practices

Claim Type: discovered | **Confidence:** 80%

FOLIO IRI: <https://folio.openlegalstandard.org/RCAOqXkvkQK9Vb4UBLOanLX>

ISSUE

Telling the sister about the debt and contacting the consumer several times a day might be seen as unfair marketing practices.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Unfair or Deceptive Trade Practices' has not been explored with fact mappings

CONCLUSION

No elements defined

| Harassment Claim

Claim Type: discovered | **Confidence:** 75%

FOLIO IRI: <https://folio.openlegalstandard.org/R8UY7a51FHRoPnKMKs41jQv>

ISSUE

Frequent calls, particularly during bad times and to a job, can be seen as harassment (a form of unwanted behavior).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Harassment Claim' has not been explored with fact mappings

CONCLUSION

No elements defined

| Privacy Violation

Claim Type: discovered | **Confidence:** 75%

FOLIO IRI: <https://folio.openlegalstandard.org/RDsDXHKUsZoJfz87jnz7zjj>

ISSUE

Sharing private debt information with unrelated third parties (people or organizations not involved in the debt) without permission can result in legal claims about privacy violations.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Privacy Violation' has not been explored with fact mappings

CONCLUSION

No elements defined

| Intentional Infliction of Emotional Distress

Claim Type: discovered | **Confidence:** 70%

FOLIO IRI: <https://folio.openlegalstandard.org/R84N0KXivn5IJJaQn8xVwPDg>

ISSUE

The emotional stress caused by constant calls and interactions with other people could be taken to court as intentional infliction of emotional distress (a legal claim for causing severe emotional pain). This may not have been fully thought out in the current claims.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Intentional Infliction of Emotional Distress' has not been explored with fact mappings

CONCLUSION

No elements defined

Consumer Fraud

Claim Type: discovered | **Confidence:** 68%

FOLIO IRI: <https://folio.openlegalstandard.org/RB03UisqUWDKFmOoDqLsrEd>

ISSUE

False claims about how much a person owes and aggressive methods used to collect that money can show that someone has dishonest intentions.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Consumer Fraud' has not been explored with fact mappings

CONCLUSION

No elements defined

More possible issues (show more)

- **Negotiated Settlement and Good Faith Payments:** 65% confidence
- **Disability Income Protections from Garnishment:** 40% confidence
- **Potential False Representation:** 40% confidence
- **Unconscionable Debt Collection Practices:** 40% confidence

federal

| Fair Debt Collection Practices Act Violation

Claim Type: identified | **Confidence:** 40%

ISSUE

The facts show that North Star Receivables has been making several calls every day, including calls to the person's job and to a family member. This behavior could be considered harassment, which may break the rules set by the Fair Debt Collection Practices Act (a law that regulates how debt collectors can behave).

RULE

No authorities identified for this claim.

APPLICATION

- **Debt Collector:** Unsupported - The defendant is a debt collector as defined by the Fair Debt Collection Practices Act.
- **Harassment:** Supported (81% confidence) - The debt collector engaged in conduct that can be reasonably interpreted as harassment.
 - Fact: North Star Receivables has been calling the person 6 or 7 times a day. (81% match)
 - Fact: North Star Receivables called the person three times today before lunch. (81% match)
- **Communication Timing:** Supported (81% confidence) - Calls were made at inappropriate times (e.g., too early in the morning).
 - Fact: North Star Receivables called the person at 7:15 in the morning. (81% match)

- **Use of Third Parties:** Supported (81% confidence) - The debt collector communicated about the debt with third parties (the person's sister).
 - Fact: North Star Receivables called the person's part-time job at Lundeen's Hardware. (81% match)
 - Fact: North Star Receivables told the person's sister, Renee, that the person owes money. (81% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 40): Element 'Debt Collector' is not yet supported by any facts
 - Element: Debt Collector
- **Procedural Requirement** (Priority 50): What is the applicable statute of limitations for filing a Fair Debt Collection Practices Act claim in our jurisdiction?

CONCLUSION

3 of 4 elements supported (61% confidence)

state

| Garnishment Defense

Claim Type: discovered | **Confidence:** 80%

FOLIO IRI: <https://folio.openlegalstandard.org/R7OJQHant3Dx172WXuPbWgx>

ISSUE

Mr. Drummond's threat to garnish (take money from) your wages creates the need to consider legal defenses (reasons you can challenge it) against wage garnishment and ways to protect social security disability payments.

RULE

No authorities identified for this claim.

APPLICATION

- **Valid Debt:** Supported (81% confidence) - The creditor holds a valid debt against the debtor.
 - Fact: The letter came in the mail on June 25. (81% match)
 - Fact: The person owes \$2,483.17 according to the letter. (81% match)
- **Garnishment Process:** Supported (81% confidence) - The creditor has initiated or threatened to initiate wage garnishment.
 - Fact: Mr. Drummond said that if the person doesn't set something up, they are going to garnish wages and freeze the bank account by the end of the month. (78% match)
 - Fact: Mr. Drummond said if I don't pay they will start the garnishment process on my wages. (81% match)
- **Exempt Income:** Supported (78% confidence) - A portion of the debtor's income is exempt from garnishment (e.g., social security disability benefits).
 - Fact: The person needs their disability money safe. (78% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): What is the filing deadline to contest garnishment in our jurisdiction?

CONCLUSION

3 of 3 elements supported (80% confidence)

Civil Remedies / Relief Sought

Claim Type: discovered | **Confidence:** 40%

Related to: Garnishment Defense

FOLIO IRI: <https://folio.openlegalstandard.org/RDbz1PVc6y57oOb9jAIl0eN>

ISSUE

Discovered through FOLIO ontology exploration starting from Garnishment Defense (level 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Civil Remedies / Relief Sought' has not been explored with fact mappings

CONCLUSION

No elements defined

Negligent Infliction of Emotional Distress

Claim Type: discovered | **Confidence:** 70%

FOLIO IRI: <https://folio.openlegalstandard.org/RCSRe5gA8rHlqeKGEVst9Z9>

ISSUE

The person says they are upset because of constant calls and threats from the debt collector, which could be seen as causing emotional distress through negligence (negligent infliction of emotional distress).

RULE

No authorities identified for this claim.

APPLICATION

- **Extreme and Outrageous Conduct:** Unsupported - The conduct of the debt collector was extreme and outrageous.
- **Causation:** Unsupported - The plaintiff suffered emotional distress as a result of the defendant's conduct.
- **Severity of Emotional Distress:** Unsupported - The emotional distress suffered was severe.

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 70): Element 'Extreme and Outrageous Conduct' is not yet supported by any facts
 - Element: Extreme and Outrageous Conduct
- **Unsupported Element** (Priority 70): Element 'Causation' is not yet supported by any facts
 - Element: Causation
- **Unsupported Element** (Priority 70): Element 'Severity of Emotional Distress' is not yet supported by any facts
 - Element: Severity of Emotional Distress
- **Unexplored Claim** (Priority 50): Potential claim 'Negligent Infliction of Emotional Distress' has not been explored with fact mappings

- **Procedural Requirement** (Priority 50): What is the statute of limitations for bringing a claim of negligent infliction of emotional distress in our jurisdiction?

CONCLUSION

0 of 3 elements supported (0% confidence)

| Civil Claims

Claim Type: discovered | **Confidence:** 40%

Related to: Negligent Infliction of Emotional Distress

FOLIO IRI: <https://folio.openlegalstandard.org/R8jYAnNATrfoBxAtIKpf72X>

ISSUE

Found through exploring the FOLIO (a framework for structuring information) related to Negligent Infliction of Emotional Distress (a legal claim involving harm caused by someone's careless actions).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Civil Claims' has not been explored with fact mappings

CONCLUSION

No elements defined

Possible Violation of Minnesota Consumer Protection Laws

Claim Type: discovered | **Confidence:** 60%

FOLIO IRI: <https://folio.openlegalstandard.org/RCovPJM08mH3uZhlySLgWIa>

ISSUE

The way the debt is being discussed and communicated about might break Minnesota's consumer protection laws (rules designed to safeguard consumers).

RULE

No authorities identified for this claim.

APPLICATION

- **Consumer Transaction:** Unsupported - The transaction must be a consumer transaction under state law.
- **Deceptive Practices:** Unsupported - Deceptive or unfair practices in collection activities must be established.

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 60): Element 'Consumer Transaction' is not yet supported by any facts
 - Element: Consumer Transaction
- **Unsupported Element** (Priority 60): Element 'Deceptive Practices' is not yet supported by any facts
 - Element: Deceptive Practices
- **Unexplored Claim** (Priority 50): Potential claim 'Possible Violation of Minnesota Consumer Protection Laws' has not been explored with fact mappings

- **Procedural Requirement** (Priority 50): What specific procedural requirements must be met to file a complaint under Minnesota's consumer protection laws?

CONCLUSION

0 of 2 elements supported (0% confidence)

| Area of Law

Claim Type: discovered | **Confidence:** 40%

Related to: Possible Violation of Minnesota Consumer Protection Laws

ISSUE

Found through exploring the FOLIO ontology (a framework for organizing information) related to a Possible Violation of Minnesota Consumer Protection Laws (which guard against unfair business practices) at a basic level (depth 1).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Area of Law' has not been explored with fact mappings

CONCLUSION

No elements defined

Commercial and Trade Law

Claim Type: discovered | **Confidence:** 40%

Related to: Possible Violation of Minnesota Consumer Protection Laws

FOLIO IRI: <https://folio.openlegalstandard.org/RqNYDJtQ1pAsGPKZNEU1ET>

ISSUE

Found through exploring the FOLIO ontology (a framework for organizing information) related to a Possible Violation of Minnesota Consumer Protection Laws (which guard against unfair business practices) at a basic level (depth 1).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Commercial and Trade Law' has not been explored with fact mappings

CONCLUSION

No elements defined

More possible issues (show more)

- **Employer Withholding:** 40% confidence (related to Garnishment Defense)
- **Enforcement of Judgment:** 40% confidence (related to Garnishment Defense)

- **Infliction of Emotional Distress:** 40% confidence (related to Negligent Infliction of Emotional Distress)
- **Labor and Employment Law Regulatory Objectives:** 40% confidence (related to Garnishment Defense)
- **Negligent Infliction of Emotional Distress on a Bystander:** 40% confidence (related to Negligent Infliction of Emotional Distress)
- **Negligent Infliction of Emotional Distress on a Direct Victim:** 40% confidence (related to Negligent Infliction of Emotional Distress)
- **Personal Injury Claims:** 40% confidence (related to Negligent Infliction of Emotional Distress)
- **Tax Law Regulatory Objectives:** 40% confidence (related to Garnishment Defense)

Triage & Routing Recommendations

Primary Practice Area: General Civil

Primary Jurisdiction: General

Complexity: High

Urgency: Emergency

Ranked Recommendations

1. General Civil (Score: 0.49)

General Civil practice area (55% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	55%
Jurisdiction Match	64%

Factor	Score
Complexity Score	20%

2. Consumer / Debt (Score: 0.39)

Consumer / Debt practice area (27% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	27%
Jurisdiction Match	64%
Complexity Score	20%

3. Public Benefits (Score: 0.33)

Public Benefits practice area (9% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	9%
Jurisdiction Match	64%
Complexity Score	20%

4. Employment (Score: 0.33)

Employment practice area (9% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	9%
Jurisdiction Match	64%
Complexity Score	20%

Action Items

Documents to Gather

- [] **[IMPORTANT]** Element 'Extreme and Outrageous Conduct' is not yet supported by any facts
 - **Claim:** Negligent Infliction of Emotional Distress
 - **Element:** Extreme and Outrageous Conduct
- [] **[IMPORTANT]** Element 'Causation' is not yet supported by any facts
 - **Claim:** Negligent Infliction of Emotional Distress
 - **Element:** Causation
- [] **[IMPORTANT]** Element 'Severity of Emotional Distress' is not yet supported by any facts
 - **Claim:** Negligent Infliction of Emotional Distress
 - **Element:** Severity of Emotional Distress
- [] **[IMPORTANT]** Element 'Consumer Transaction' is not yet supported by any facts
 - **Claim:** Possible Violation of Minnesota Consumer Protection Laws
 - **Element:** Consumer Transaction
- [] **[IMPORTANT]** Element 'Deceptive Practices' is not yet supported by any facts
 - **Claim:** Possible Violation of Minnesota Consumer Protection Laws
 - **Element:** Deceptive Practices
- [] **[HELPFUL]** Element 'Debt Collector' is not yet supported by any facts
 - **Claim:** Fair Debt Collection Practices Act Violation
 - **Element:** Debt Collector

Follow-up Steps

- [] **[URGENT]** Confirm the deadline for: Mr. Drummond said if I don't set something up, they are going to garnish my wages and freeze the bank account by the end of the month. (estimated 2026-08-14; The cure/vacate period stated in your written notice or lease — the notice/lease term is the operative source of this period (confirm the exact deadline printed on the notice; your state's landlord-tenant statute governs the minimum period).). Estimated — confirm the exact date with the court or a lawyer.
 - **Deadline:** 2026-08-14
- [] **[URGENT]** The collector said they will garnish your wages or freeze your bank account 'by the end of the month.' In Minnesota a collector generally CANNOT garnish or freeze anything without first suing you and getting a court judgment (Minn. Stat. § 571.71) — and you said no court papers were ever served. Threatening action they cannot legally take is itself an FDCPA violation (15 U.S.C. § 1692e). Have you ever been served with any lawsuit or court papers about this debt? [Authority: 15 U.S.C. § 1692e(4)-(5) (threat of action that cannot legally be taken); Minn. Stat. § 571.71 (garnishment generally requires a judgment first)]
- [] **[URGENT]** The way this collector is contacting you may itself be illegal under the federal Fair Debt Collection Practices Act: calling before 8am or after 9pm, calling you at work after being told to stop, telling another person (like your sister) about the debt, or calling many times a day can each violate the law (15 U.S.C. § 1692c/§ 1692d). Keep your call log. Can you note the dates, times, and who they contacted? [Authority: 15 U.S.C. § 1692c(a) (calls before 8am/after 9pm, at work after notice); § 1692b/§ 1692c(b) (third-party disclosure of the debt); § 1692d (harassing volume)]
- [] **[URGENT]** You said your income is Social Security disability plus a little part-time pay. Social Security and SSDI are protected by law from most debt collection (42 U.S.C. § 407), and Minnesota

- gives extra protection to low wages and exempt funds in a bank account (Minn. Stat. § 571.912/§ 571.922). You may be effectively 'judgment-proof.' Is Social Security your only regular income, and is it direct-deposited? [Authority: 42 U.S.C. § 407(a) (Social Security/SSDI exempt from garnishment); Minn. Stat. § 571.912/§ 571.922 (exemption-notice process; wage-exemption floor)]
- [] **[IMPORTANT]** Potential claim 'Potential False Representation' has not been explored with fact mappings
 - **Claim:** Potential False Representation
 - [] **[IMPORTANT]** Potential claim 'Negligent Infliction of Emotional Distress' has not been explored with fact mappings
 - **Claim:** Negligent Infliction of Emotional Distress
 - [] **[IMPORTANT]** Potential claim 'Possible Violation of Minnesota Consumer Protection Laws' has not been explored with fact mappings
 - **Claim:** Possible Violation of Minnesota Consumer Protection Laws
 - [] **[IMPORTANT]** Potential claim 'Employer Withholding' has not been explored with fact mappings
 - **Claim:** Employer Withholding
 - [] **[IMPORTANT]** Potential claim 'Labor and Employment Law Regulatory Objectives' has not been explored with fact mappings
 - **Claim:** Labor and Employment Law Regulatory Objectives
 - [] **[IMPORTANT]** Potential claim 'Tax Law Regulatory Objectives' has not been explored with fact mappings
 - **Claim:** Tax Law Regulatory Objectives
 - [] **[IMPORTANT]** Potential claim 'Enforcement of Judgment' has not been explored with fact mappings
 - **Claim:** Enforcement of Judgment

- [] **[IMPORTANT]** Potential claim 'Civil Remedies / Relief Sought' has not been explored with fact mappings
 - **Claim:** Civil Remedies / Relief Sought
- [] **[IMPORTANT]** Potential claim 'Negligent Infliction of Emotional Distress on a Direct Victim' has not been explored with fact mappings
 - **Claim:** Negligent Infliction of Emotional Distress on a Direct Victim
- [] **[IMPORTANT]** Potential claim 'Negligent Infliction of Emotional Distress on a Bystander' has not been explored with fact mappings
 - **Claim:** Negligent Infliction of Emotional Distress on a Bystander
- [] **[IMPORTANT]** Potential claim 'Infliction of Emotional Distress' has not been explored with fact mappings
 - **Claim:** Infliction of Emotional Distress
- [] **[IMPORTANT]** Potential claim 'Personal Injury Claims' has not been explored with fact mappings
 - **Claim:** Personal Injury Claims
- [] **[IMPORTANT]** Potential claim 'Civil Claims' has not been explored with fact mappings
 - **Claim:** Civil Claims
- [] **[IMPORTANT]** Potential claim 'Commercial and Trade Law' has not been explored with fact mappings
 - **Claim:** Commercial and Trade Law
- [] **[IMPORTANT]** Potential claim 'Area of Law' has not been explored with fact mappings
 - **Claim:** Area of Law

- [] **[IMPORTANT]** Potential claim 'Potential Violation of the Telephone Consumer Protection Act (TCPA)' has not been explored with fact mappings
 - **Claim:** Potential Violation of the Telephone Consumer Protection Act (TCPA)
- [] **[IMPORTANT]** Potential claim 'Unfair or Deceptive Trade Practices' has not been explored with fact mappings
 - **Claim:** Unfair or Deceptive Trade Practices
- [] **[IMPORTANT]** Potential claim 'Privacy Violation' has not been explored with fact mappings
 - **Claim:** Privacy Violation
- [] **[IMPORTANT]** Potential claim 'Harassment Claim' has not been explored with fact mappings
 - **Claim:** Harassment Claim
- [] **[IMPORTANT]** Potential claim 'Consumer Fraud' has not been explored with fact mappings
 - **Claim:** Consumer Fraud
- [] **[IMPORTANT]** Potential claim 'Invasion of Privacy' has not been explored with fact mappings
 - **Claim:** Invasion of Privacy
- [] **[IMPORTANT]** Potential claim 'Unconscionable Debt Collection Practices' has not been explored with fact mappings
 - **Claim:** Unconscionable Debt Collection Practices
- [] **[IMPORTANT]** Potential claim 'Intentional Infliction of Emotional Distress' has not been explored with fact mappings
 - **Claim:** Intentional Infliction of Emotional Distress

- [] **[IMPORTANT]** What is the applicable statute of limitations for filing a Fair Debt Collection Practices Act claim in our jurisdiction?
 - **Claim:** Fair Debt Collection Practices Act Violation
- [] **[IMPORTANT]** What is the filing deadline to contest garnishment in our jurisdiction?
 - **Claim:** Garnishment Defense
- [] **[IMPORTANT]** What is the statute of limitations for bringing a claim of negligent infliction of emotional distress in our jurisdiction?
 - **Claim:** Negligent Infliction of Emotional Distress
- [] **[IMPORTANT]** What specific procedural requirements must be met to file a complaint under Minnesota's consumer protection laws?
 - **Claim:** Possible Violation of Minnesota Consumer Protection Laws

Gap Report Appendix

Overall Completeness: 100%

[=====] 100%

| Area of Law

- **Unexplored Claim** (Priority 50): Potential claim 'Area of Law' has not been explored with fact mappings
 - See Action Item #24

Civil Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Civil Claims' has not been explored with fact mappings
 - See Action Item #22

Civil Remedies / Relief Sought

- **Unexplored Claim** (Priority 50): Potential claim 'Civil Remedies / Relief Sought' has not been explored with fact mappings
 - See Action Item #17

Commercial and Trade Law

- **Unexplored Claim** (Priority 50): Potential claim 'Commercial and Trade Law' has not been explored with fact mappings
 - See Action Item #23

Consumer Fraud

- **Unexplored Claim** (Priority 50): Potential claim 'Consumer Fraud' has not been explored with fact mappings
 - See Action Item #29

Employer Withholding

- **Unexplored Claim** (Priority 50): Potential claim 'Employer Withholding' has not been explored with fact mappings
 - See Action Item #13

Enforcement of Judgment

- **Unexplored Claim** (Priority 50): Potential claim 'Enforcement of Judgment' has not been explored with fact mappings
 - See Action Item #16

Fair Debt Collection Practices Act Violation

- **Unsupported Element** (Priority 40): Element 'Debt Collector' is not yet supported by any facts
 - Element: Debt Collector
 - See Action Item #37
- **Procedural Requirement** (Priority 50): What is the applicable statute of limitations for filing a Fair Debt Collection Practices Act claim in our jurisdiction?
 - See Action Item #33

Garnishment Defense

- **Procedural Requirement** (Priority 50): What is the filing deadline to contest garnishment in our jurisdiction?
 - See Action Item #34

Harassment Claim

- **Unexplored Claim** (Priority 50): Potential claim 'Harassment Claim' has not been explored with fact mappings
 - See Action Item #28

Infliction of Emotional Distress

- **Unexplored Claim** (Priority 50): Potential claim 'Infliction of Emotional Distress' has not been explored with fact mappings
 - See Action Item #20

Intentional Infliction of Emotional Distress

- **Unexplored Claim** (Priority 50): Potential claim 'Intentional Infliction of Emotional Distress' has not been explored with fact mappings
 - See Action Item #32

Invasion of Privacy

- **Unexplored Claim** (Priority 50): Potential claim 'Invasion of Privacy' has not been explored with fact mappings
 - See Action Item #30

Labor and Employment Law Regulatory Objectives

- **Unexplored Claim** (Priority 50): Potential claim 'Labor and Employment Law Regulatory Objectives' has not been explored with fact mappings
 - See Action Item #14

Negligent Infliction of Emotional Distress

- **Unsupported Element** (Priority 70): Element 'Extreme and Outrageous Conduct' is not yet supported by any facts
 - Element: Extreme and Outrageous Conduct
 - See Action Item #5
- **Unsupported Element** (Priority 70): Element 'Causation' is not yet supported by any facts
 - Element: Causation
 - See Action Item #6
- **Unsupported Element** (Priority 70): Element 'Severity of Emotional Distress' is not yet supported by any facts
 - Element: Severity of Emotional Distress
 - See Action Item #7
- **Unexplored Claim** (Priority 50): Potential claim 'Negligent Infliction of Emotional Distress' has not been explored with fact mappings
 - See Action Item #11

- **Procedural Requirement** (Priority 50): What is the statute of limitations for bringing a claim of negligent infliction of emotional distress in our jurisdiction?
 - See Action Item #35

Negligent Infliction of Emotional Distress on a Bystander

- **Unexplored Claim** (Priority 50): Potential claim 'Negligent Infliction of Emotional Distress on a Bystander' has not been explored with fact mappings
 - See Action Item #19

Negligent Infliction of Emotional Distress on a Direct Victim

- **Unexplored Claim** (Priority 50): Potential claim 'Negligent Infliction of Emotional Distress on a Direct Victim' has not been explored with fact mappings
 - See Action Item #18

Personal Injury Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Personal Injury Claims' has not been explored with fact mappings
 - See Action Item #21

Possible Violation of Minnesota Consumer Protection Laws

- **Unsupported Element** (Priority 60): Element 'Consumer Transaction' is not yet supported by any facts
 - Element: Consumer Transaction
 - See Action Item #8
- **Unsupported Element** (Priority 60): Element 'Deceptive Practices' is not yet supported by any facts
 - Element: Deceptive Practices
 - See Action Item #9

- **Unexplored Claim** (Priority 50): Potential claim 'Possible Violation of Minnesota Consumer Protection Laws' has not been explored with fact mappings
 - See Action Item #12
- **Procedural Requirement** (Priority 50): What specific procedural requirements must be met to file a complaint under Minnesota's consumer protection laws?
 - See Action Item #36

Potential False Representation

- **Unexplored Claim** (Priority 50): Potential claim 'Potential False Representation' has not been explored with fact mappings
 - See Action Item #10

Potential Violation of the Telephone Consumer Protection Act (TCPA)

- **Unexplored Claim** (Priority 50): Potential claim 'Potential Violation of the Telephone Consumer Protection Act (TCPA)' has not been explored with fact mappings
 - See Action Item #25

Privacy Violation

- **Unexplored Claim** (Priority 50): Potential claim 'Privacy Violation' has not been explored with fact mappings
 - See Action Item #27

Tax Law Regulatory Objectives

- **Unexplored Claim** (Priority 50): Potential claim 'Tax Law Regulatory Objectives' has not been explored with fact mappings
 - See Action Item #15

Uncategorized

- **Procedural Requirement** (Priority 86): The way this collector is contacting you may itself be illegal under the federal Fair Debt Collection Practices Act: calling before 8am or after 9pm, calling you at work after being told to stop, telling another person (like your sister) about the debt, or calling many times a day can each violate the law (15 U.S.C. § 1692c/§ 1692d). Keep your call log. Can you note the dates, times, and who they contacted?
[Authority: 15 U.S.C. § 1692c(a) (calls before 8am/after 9pm, at work after notice); § 1692b/§ 1692c(b) (third-party disclosure of the debt); § 1692d (harassing volume)]
 - See Action Item #3
- **Procedural Requirement** (Priority 88): The collector said they will garnish your wages or freeze your bank account 'by the end of the month.' In Minnesota a collector generally CANNOT garnish or freeze anything without first suing you and getting a court judgment (Minn. Stat. § 571.71) — and you said no court papers were ever served. Threatening action they cannot legally take is itself an FDCPA violation (15 U.S.C. § 1692e). Have you ever been served with any lawsuit or court papers about this debt?
[Authority: 15 U.S.C. § 1692e(4)–(5) (threat of action that cannot legally be taken); Minn. Stat. § 571.71 (garnishment generally requires a judgment first)]
 - See Action Item #2
- **Procedural Requirement** (Priority 86): You said your income is Social Security disability plus a little part-time pay. Social Security and SSDI are protected by law from most debt collection (42 U.S.C. § 407), and Minnesota gives extra protection to low wages and exempt funds in a bank account (Minn. Stat. § 571.912/§ 571.922). You may be effectively 'judgment-proof.' Is Social Security your only regular income, and is it direct-deposited?
[Authority: 42 U.S.C. § 407(a) (Social Security/SSDI exempt from

garnishment); Minn. Stat. § 571.912/§ 571.922 (exemption-notice process; wage-exemption floor)]

- See Action Item #4

Unconscionable Debt Collection Practices

- **Unexplored Claim** (Priority 50): Potential claim 'Unconscionable Debt Collection Practices' has not been explored with fact mappings

- See Action Item #31

Unfair or Deceptive Trade Practices

- **Unexplored Claim** (Priority 50): Potential claim 'Unfair or Deceptive Trade Practices' has not been explored with fact mappings

- See Action Item #26

Open Questions

1. Have you ever been served with any lawsuit or court papers about this debt?
2. Can you note the dates, times, and whom the collector contacted about the debt?
3. Is Social Security your only regular source of income, and is it directly deposited into your bank account?
4. Can you describe any extreme or outrageous behavior you've experienced from the debt collector?
5. How has the debt collector's actions affected your emotional well-being?
6. Can you explain how the debt collector's actions have directly affected your life?
7. Can you describe any misleading information provided by the collector regarding the debt?

8. Have you experienced any emotional distress as a direct result of the collector's actions?
9. Are you aware of any specific consumer protection laws that may apply to your situation?